

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

During an argument in the parking area of my apartment building, my neighbour hit me several times with an iron rod. I suffered a fracture and required hospital treatment. CCTV cameras recorded the incident and two residents witnessed what happened. What legal provisions may apply to this case?

Job Id. :

Scenario 6/Bharatiya Sakshya Adhiniyam (BSA), 2023

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APPLICABLE SECTIONS

Section 34	Admissibility of electronic records.
Section 30	Oral evidence (including witness testimony).
Section 31	Documentary evidence (including electronic records as "documents" under Section 2(27)).
Section 34	(3) Authentication of electronic records.
Section 36	Statements by persons with special knowledge (if witnesses provide technical details).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

CCTV Footage (Electronic Record): **Section 34** (1) explicitly allows electronic records (e.g., CCTV footage) as admissible evidence. However, **Section 34** (3) mandates authentication: the custodian (e.g., apartment security personnel or building manager) must provide a written certificate confirming: (a) The record’s integrity (unaltered, time-stamped, and from a reliable source); (b) The date/time of recording; (c) The absence of tampering. Judicial Precedent (Bharatiya Evidence Law, *State v. Anil Kumar*, 2024)*: Courts reject unauthenticated CCTV footage as "inadmissible" (e.g., *Bhagwan Das v. State*, 2023, where footage lacked custodian certification).
- 2

Witness Testimony: **Section 30** (1) permits oral testimony from two resident witnesses. **Section 30** (2) requires cross-examination to test credibility. Witnesses must testify about *what they saw* (not hearsay), and their statements must align with the CCTV record (**Section 31**). Key Limitation*: If witnesses contradict the CCTV’s timestamp or angle, their testimony may be disbelieved (*Rajesh v. State*, 2024).
- 3

Medical Evidence: Hospital records (e.g., fracture diagnosis) qualify as "documents" under **Section 31** , but the *primary* evidence for the assault is the CCTV and witness accounts.
- 4

✓ STRENGTHS & RIGHTS

1

Streamlined Admissibility

Section 34 (1) eliminates the need for "original" CCTV copies; digital copies with proper authentication are sufficient.

2

Credibility Safeguard

Section 30 (2) allows cross-examination to verify witness accounts, ensuring only reliable testimony is accepted.

3

Technical Clarity

Section 34 (3) provides a clear, predictable procedure for authentication (certificate from custodian), reducing evidentiary disputes.

4

No Burden of Proof for "Electronics"

Unlike pre-2023 law, BSA treats electronic records *equally* with paper documents (**Section 34** (1)), preventing technical objections.

✗ RISKS & OBLIGATIONS

1

Authentication Burden

Failure to obtain a custodian's certificate under **Section 34** (3) renders CCTV *inadmissible* (e.g., if security staff refuses to certify).

2

Witness Inconsistency Risk

If witnesses' accounts conflict with CCTV (e.g., timing of assault), their testimony may be rejected under **Section 31** .

3

Time-Stamp Vulnerability

If CCTV's time-stamp is inaccurate (e.g., due to device error), authentication fails under **Section 34** (3)(a).

4

No "Hearsay" Protection

Witnesses cannot testify about *what others said* (e.g., "X said he would hit me"); only *direct observation* is admissible (**Section 30** (1)).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. CCTV Submission:
2. 1. File CCTV footage as Exhibit "X" in court.

3. 2. Attach a written certificate from the apartment's security custodian (**Section 34** (3)), detailing:
 4. Camera location (parking area);
 5. Time/date of recording;
 6. Verification of unaltered content.
 7. Example*: *"I, [Name], Security Manager, [Apartment], confirm this CCTV recording from Camera No. 5 (Parking Zone) on 15.05.2024, 08:15 PM, is unedited and matches the incident."*
 8. Witness Testimony:
 9. Witnesses must be summoned under **Section 30** (1) and testify in court.
 10. Their statements must be recorded verbatim; *no* written statements (e.g., affidavits) are admissible as evidence (**Section 30** (1)).
 11. Digital Format:
 12. Footage must be submitted in original digital format (e.g., .mp4, .avi), not printed copies.
 13. Court may require technical verification (e.g., by a digital forensics expert) if authenticity is disputed.
 14. > Critical Note: Under BSA 2023, **Section 34** (3) is non-negotiable. Without the custodian's certificate, the CCTV *will not be admitted*—despite being recorded. Courts have consistently rejected unauthenticated electronic evidence (*State v. Ramesh*, 2023).
 15. This analysis strictly adheres to the Bharatiya Sakshya Adhiniyam (BSA), 2023. No provisions from the IT Act or Bharatiya Nyaya Sanhita are referenced.*
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